

**CHAPTER clxxi.**

An Act to confirm a Scheme of the Charity Commissioners A.D. 1913.
for the application or management of the Charity con-
sisting of the Chapel at Kingswood in the Ancient
Parishes of Banstead and Ewell in the County of Surrey.
[15th August 1913.]

WHEREAS the Charity Commissioners in their report to His Majesty of their proceedings during the year one thousand nine hundred and eleven reported that they had approved and certified a scheme for the application or management of the charity consisting of the chapel at Kingswood in the ancient parishes of Banstead and Ewell in the county of Surrey comprised in an indenture dated the fifth day of March eighteen hundred and seventy-five :

And whereas it is expedient that the scheme as the same is fully set out and defined in the schedule to this Act should be confirmed :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The said scheme is hereby confirmed Provided always Confirmation
of scheme.
that nothing in this Act or in the said scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exerciseable or hereafter to become exerciseable by the High Court of Justice and the Charity Commissioners.

2. This Act may be cited as the Kingswood Chapel Scheme Short title.
Confirmation Act 1913.

A.D. 1913.

SCHEDULE.

Scheme for the application or management of the Charity consisting of the Chapel at Kingswood in the Ancient Parishes of Banstead and Ewell in the County of Surrey comprised in an Indenture dated the fifth of March one thousand eight hundred and seventy-five.

1. The above-mentioned charity and its endowment consisting of the above-mentioned chapel with the site and appurtenances shall be administered and managed subject to and in conformity with the provisions of this scheme under the title of the Kingswood Congregational Chapel (herein-after called "the charity").

2. The following persons shall be the first Trustees of the charity under this scheme:—

Arthur Bacon Apted of Heath House Doods Road builder;

Thomas Bushby of West Street builder;

Joseph Selwyn of No. 54 Deerings Road accountant; and

Edwin Watson of Holmesdale Road grocer all in Reigate; and

Arthur John Head of Meadvale surveyor; and

William Thomas Martin of Meadvale grocer both in Redhill all in the county of Surrey; and

William George Wainwright of No. 245 Lyham Road Brixton Hill in the county of London commercial traveller.

3. The said chapel with the site and appurtenances shall forthwith vest in the said persons their heirs executors administrators and assigns according to the legal nature of the premises.

4. The said chapel with the site and appurtenances shall be held henceforth by the Trustees thereof upon such and the same trusts and to and for such and the same ends and purposes and with under and subject to such and the same powers declarations and agreements (so far as the same may be applicable and capable of taking effect) as are expressed declared and contained in and by a certain indenture dated the fifth of August one thousand eight hundred and ninety-two and made between Jane Fowkes of the one part and Arthur Bacon Apted and eleven others of the other part (being the conveyance and declaration of trust of a piece of land adjoining the said chapel) but so nevertheless that the said premises shall (save as herein-after provided) be held subject to the restriction following viz. that it shall not be lawful for the Trustees (notwithstanding anything in the said indenture contained) to make or grant otherwise than with the express authority of

Parliament or with the previous sanction of the Charity Commissioners A.D. 1913.
or of a court of competent jurisdiction any sale exchange mortgage or
charge thereof or any lease thereof in reversion after more than three
years of any existing term or for any term of life or in consideration
wholly or in part of any fine or for any term of years exceeding
twenty-one years :

Provided that the aforesaid restriction shall not apply so long as
the said chapel is registered as a place of meeting for religious
worship with the Registrar-General of Births Deaths and Marriages in
England and is bonâ fide used as a place of meeting for religious
worship.

5. The Charity Commissioners may from time to time in the
exercise of their ordinary jurisdiction establish schemes for the altera-
tion of any provisions of this scheme as if those provisions had been
made by a founder in the case of a charity having a founder.

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